



The Planning Board

Town of Westhampton
1 South Road
Westhampton, MA 02539
Tel: (413) 23-3086
www.westhamptonma.gov
administration@westhamptonma.gov

6/3/2026
11:48am
KD

DECISION

Town of Westhampton as Applicant, 37 Kings Highway

On Monday, May 11, 2026 at 7:00 PM, the Planning Board opened a public hearing at The Town Hall, 1 South Road, to consider the request of Stuart Clark, Green Seal Environmental, on behalf of Town of Westhampton as Applicant to **install a medium-scale ground-mounted solar array and battery energy storage system at the Westhampton Elementary School.**

The subject property is located at 37 Kings Highway, Assessors Parcel # 019-0-0052-0000-0.

Applicable Law

The application was made in accordance with Section 5.14 of the Westhampton Zoning Bylaw.

Applicant Provided

- APPLICATION - received April 15, 2026
- SITE PLAN - showing Existing Conditions
- SITE PLAN - showing Aerial Imagery
- SITE PLAN - showing proposal (revised as of April 17, 2026)
- SITE PLAN - showing Materials and Layout
- SITE PLAN - showing details
- EXHIBIT - Project Narrative
- EXHIBIT - showing inverter specifications
- EXHIBIT - Operations and Maintenance Manual
- EXHIBIT - Panel Specifications
- EXHIBIT - Project Summary and Public Engagement Plan
- EXHIBIT - Single Line Diagram
- EXHIBIT - Site Control - Utility Notice - Cert of Insurance
- EXHIBIT - Three Phase Inverter Specifications
- LETTER - From Noll - General Decommissioning Procedure
- EXHIBIT - Fire suppression - Novec Fire Protection Fluid - Technical Data Sheet
- EXHIBIT - Fire Suppression - MSDS Sheets
- EXHIBIT - Generac SBE - Emergency Response Guide
- EXHIBIT - Generac SBE Cabinet - 125 kW (With MPS125) R0G
- EXHIBIT - GNRC SBE Fire Safety Overview

Procedural Record

The application and plans were submitted to the Planning Board on April 12, 2026. Notices of the application, including the general purpose of the application, were sent to appropriate Westhampton departments, boards and committees on April 21, 2026. A public hearing notice was advertised in the Daily Hampshire Gazette on Tuesday, April 28, 2026 and Tuesday, May 5, 2026. Hearing notices were posted by the Town Clerk, placed on the Town's website, and placed on the Town bulletin board on or before 4/21/2026. Abutters, certified by the Assessors' Office, were notified by mail April 27, 2026.

The public hearing was opened on May 11, 2026, at 7:00 PM, continued to May 27, 2026 and June 1, 2026, and closed on June 1, 2026 at 6:29 PM.

Criteria

5.14.3 - Dimensions and Placement of Ground Mounted Solar Energy Systems

- a) All ground mounted solar energy systems shall be no higher than thirty-five (35) feet.
- b) All ground mounted solar energy systems shall meet front setback of fifty (50) feet, side setback of twenty (20) feet, and rear setback of twenty (20) feet.
- c) No ground mounted solar energy system shall be placed within the fifty (50) foot front setback.
- d) All ground mounted solar energy systems shall be positioned such that they do not interfere with access to, or functioning and maintenance of, existing on-site septic system components.
- e) Small Scale: a Small Scale Ground Mounted Solar Energy System is an active solar energy system that occupies 2,100 square feet or less of surface area of solar panels. Small-scale ground mounted solar energy systems are allowed By Right, but shall be reviewed by the Building Inspector before issuance of a building permit.
- f) Medium Scale: a Medium Scale Ground Mounted Solar Energy System is an active solar system that occupies more than 2,100 but less than 32,000 square feet of surface area of solar panels. Medium scale ground mounted systems shall require a Special Permit from the Special Permit Granting Authority (SPGA) before issuance of a building permit.
- g) Large Scale: a Large Scale Ground Mounted Solar Energy System is an active solar system that occupies 32,000 square feet or more of surface area of solar panels. Large-scale ground mounted solar energy systems are encouraged to be placed in the Solar Photovoltaic District (SP). Large-scale ground mounted solar energy systems not located in the (SPD) district shall apply for a Special Permit/Site Plan Approval from the Planning Board (SP/PB/SPA). Large-scale ground mounted solar energy systems located in the Solar Photovoltaic District (SPD) require a Special Permit from the Planning Board (SP/PB).
- h) No ground mounted solar energy system shall be installed upon or at the Westhampton capped landfill or transfer station without the written consent and permitting from the Massachusetts Department of Environment Protection (DEP).

5.14.4. - Utility Notification - No ground mounted solar energy system installation shall be constructed until evidence has been given to the Special Permit Granting Authority (SPGA) and the Building Inspector that the utility company that operates the electrical grid where the installation is to be located has been notified of the solar energy installation Project Proponent's intent to install an interconnected customer owned generator. Off-Grid systems shall be exempt from this requirement.

5.14.6. - Design Standards: Projects shall be designed to:

- a. Minimize the volume of cut and fill, the number of removed trees 10" in diameter or larger, the length of removed stone walls, the area of wetland vegetation displaced, the extent of storm water flow increase from the site, soil erosion, and threat of air and water pollution;
- b. Maximize pedestrian and vehicular safety when on the site, entering, and exiting the site;
- c. Minimize obstruction of scenic views from publicly accessible locations;
- d. Minimize visual intrusion by controlling the visibility of parking, storage, or other outdoor service areas viewed from public ways or premises residentially used or zoned;
- e. Minimize glare from headlights and light trespass;
- f. Ensure adequate access to each structure to fire and service equipment and adequate provisions for utilities and storm water drainage;
- g. Site Lighting - Lighting of solar energy installations shall be consistent with local, state and federal law. Lighting of other parts of the installation, such as appurtenant structures, shall be limited to that required for safety and operational purposes, and shall be reasonably shielded from abutting properties. Where feasible, lighting of the solar energy installations shall be directed downward and shall incorporate full cutoff fixtures to reduce light pollution. All solar energy installations shall also comply with Section 5.3 ("Lighting");
- h. Signage - No signage on ground mounted solar energy installations is permitted other than those required to identify voltage and electrocution hazards as well as the owner, and provide a 24-hour emergency contact phone number. Ground mounted solar energy installations shall not be used for displaying any advertising except for reasonable identification of the manufacturer or operator of the solar energy installation;
- i. Utility Connections - Reasonable efforts, as determined by the Site Plan Review Authority, shall be made to place all utility connections from the ground mounted solar energy installation underground, depending on appropriate soil

conditions, shape, and topography of the site and any requirements of the utility provider. Electrical transformers for utility interconnections may be above ground if required by the utility provider;

7. - Safety/Environmental Standards

- a. Emergency Services - The ground mounted solar energy installation project proponent shall provide a copy of the project summary, electrical schematic, and site plan to the local fire chief. Upon request, the project proponent shall cooperate with local emergency services in developing an emergency response plan. All means of shutting down the solar energy installation shall be clearly marked. The project proponent shall identify a responsible person for public inquiries through the life of the installation.
- b. Land Clearing/Soil Erosion and Habitat Impacts - Clearing of natural vegetation shall be limited to what is necessary for the construction, operation and maintenance of the ground mounted solar energy installation or otherwise prescribed by applicable laws, regulations, and bylaws. Such installations shall not occur on any slope greater than 15% in order to minimize erosion. No more than 50% of the land parcel utilized for ground mounted solar energy installations shall contain land requiring clearing of forest.
- c. Topsoil - No topsoil shall be removed from the land parcel under consideration for ground mounted solar energy installations. If earthworks operations are required, topsoil shall be stockpiled within the property bounds and protected against erosion until such time earthwork operations are completed and topsoil can be re-spread over parcel. Earthworks shall be planned to limit export of soil material (non-topsoil) to 1,000 cubic yards per acre effected by the installation. A detailed earthworks estimate is a required submittal component providing this quality is maintained.
- d. Impact on Agricultural and Environmentally Sensitive Land - The solar energy generating installation shall be designed to minimize impact to agricultural and environmentally sensitive land and to be compatible with continued agricultural use of the land whenever possible. No more than 50% of the total land area proposed for the solar electric field may be occupied by solar panels, with the remainder of the land remaining as undeveloped open space left in its natural state.
- e. Vegetation Management - Mowing or grazing is helpful to minimize the amount and height of "fuel" available in case of fire.
- f. Ground-mounted solar energy systems may be installed on previously-paved or impervious surfaces, such as parking lots. However, no natural or vegetative ground area shall be paved or otherwise rendered impervious for the sole or primary purpose of installing a ground-mounted solar energy system.
- g. Ground-mounted solar energy systems installed on natural or vegetative surfaces shall maintain the pervious nature of the surface to maximize on-site infiltration of storm water. Impervious paving of areas beneath or between solar arrays is prohibited. To the greatest extent possible, a diversity of plant species shall be used, with preference given to species that are native to New England. Use of plants identified by most recent copy of the "Massachusetts Prohibited Plant List" maintained by the Massachusetts Department of Agricultural Resources is prohibited. Herbicides shall be applied only licensed personal in conformance with all applicable state regulations.
- h. All Medium and Large Scale ground mounted solar energy system installations and associated structures shall be enclosed by a secure fence. A secure locking system approved by the fire chief, shall be in place for emergency entrance.

5.14.8. - Monitoring and Maintenance

- a. Ground Mounted Solar Energy Installations Conditions - Project proponent shall maintain the facility in good condition. Maintenance shall include, but not be limited to, painting, structural repairs, fencing and integrity of security measures. The project proponent shall be responsible for the cost of maintaining the solar energy installation and any access road(s), unless accepted as a public way.
- b. Modifications - All material modifications to a ground mounted solar energy installation made after issuance of the required building permit shall require approval of the Special Permit Granting Authority.

Offers and Findings of Fact

May 11, 2026:

PRESENT: Zimmerman, Coffey, Clement, Milikowsky, Bronstein

- Ms. Milikowsky recused herself, noting that she was an abutter to the subject property. Ms. Susan Bronstein acted as chair pro tem.

Public Hearing

- Mr. Stuart Clark, Green Seal environmental, presented the site plan, showing the current layout of the property, and the general layout of the proposed solar PV array.

- The locations of the panels, the meter, the proposed Battery Energy Storage System ("BESS") were noted.
- The capacity of the array was noted - 75 kw AC for the BESS, 150kw for the array.
- The ground mount array would use helical coil footings, which would result in very minimal disruption to the site; the trenching would need to be backfilled and reseeded.
- The specific location of the array and fence were noted in relation to the sidewalk.
- The ground-mount array would consist of 184 panels, each rated for 585watt max output. The system - batteries and panels - would have a nameplate capacity of 107 kW DC, with a AC nameplate capacity of 75kW.
- The capacity of the array was noted as about 130% of the current building load, in order to provide for additional future capacity. The town would have the option to 'bank' credit for extra generated energy, or to assign them to other buildings or uses (e.g., the Transfer Station).
- The BESS is US hardware (from Generac), that is 'derated' to 75kwh, which will extend the capacity of the battery to run building systems in case of a grid outage.
- There are no issues relative to the existing building transformer, or the grid connection.
- The battery will be 278kWh battery, which should power the school at peak demand (40kWh) for slightly more than six hours.
- It was noted that the battery could be recharged by the solar PV system, regardless of the grid status. Further, once the battery is depleted, the existing diesel generator would take over.
- Ms. Teri Anderson noted that the system was designed to make the school more capable as an emergency shelter - or at least as a warming or cooling center for daytime use in case of extended emergencies.
- Mr. Wally Marek, Building Inspector, noted that the Building Inspections team would be looking at the applications.
- Ms. Anderson noted that the Fire Chief would be looking at developing an evacuation and emergency management plan that reflects the use - and risks - of the battery.
- The location of the battery was noted as being double of what building and electrical code requires, at the request of the Fire Chief.
- The location of the fencing around the battery was noted as being ten feet - as required by the Town Bylaw, but double of what is required by NFPA code and building codes. It was noted that the Planning Board could waive that requirement if desired.
- The location of an adjacent tree was noted.
- There was interest in removing all grass inside the security fence; the applicant agreed that the grass could be removed, and the area laid with stone to reduce maintenance issues.
- The matter of decommissioning was discussed, and the need to recycle components as needed. A decommissioning plan was provided, which noted the procedures for facility removal and disposal, and possible recycling of panels and batteries.
- It was noted that the structures - the racking, underground conduit and cabling, etc. - could be used beyond the thirty-year lifespan of the panels and battery system.
- The advantages of system upgrades in twenty to thirty years were noted.
- The battery chemistry was noted, with the chosen batteries - Lithium Iron Phosphate - which were noted as significantly stable and far more stable.
- The conduits are not expected to be oversized - adequate for the proposed cable runs; however, the system will be oversized in terms of generation.
- Mr. Dan Abrahamson noted that 'fine tuning' of the building is ongoing, and a comprehensive building assessment is ongoing.

Public Comment:

- Ms. Milikowsky (speaking as an abutter) spoke favorably about the proposal.
- Ms. Anderson spoke in favor of the project, noting that it would reduce energy costs, and the additional benefit of improving the capacity of the site as an emergency shelter.

Continuance

It was MOVED by Clement, SECONDED by Coffey

To continue the public hearing to Wednesday, May 27, 2026, at 7 PM.

VOTED: 4, 0, 1 (Milikowsky)(7:51 PM).

May 27, 2026, 7 PM.

- Ms. Bronstein, Chair Pro Temp, declared no quorum.
- Ms. Bronstein noted for the record that the public hearing would be continued to June 1, 2026, at 6 PM.

June 1, 2026, 6 PM:

- PRESENT: Zimmerman, Coffey, Clement, Milikowsky, Bronstein
- Ms. Milikowsky recused herself, and joined the audience.

PUBLIC HEARING (Continued) at 6:22 PM.

- Mr. Coffey asked whether there was any money in the grant for decommissioning. Ms. Milikowsky noted that the Town had recently established a revolving fund, which could provide up to \$120,000 in any given year for maintenance of solar PV or energy projects owned by the town, and /or to decommission them at the end of their useful life.

Adjudicative Findings

- Ms. Bronstein noted that no support, objection or commentary has been received from boards, committees, or members of the public.
- Ms. Bronstein stated that, in her opinion, that the project as presented meets the established criteria in Section 5.14, as well as the general intent of the Westhampton Zoning Bylaw. Board concurred.
- Ms. Bronstein noted that the applicant (the Town) had requested a reduction from 10-foot to 5-foot setback for fencing around the BESS. Board members agreed to waive the requirement.

Action

It was MOVED by Zimmerman, SECONDED by Clement,

To approve the application as presented; approval is conditioned on waiver of the fence requirement for the BESS to be reduced from 10 feet to 5 feet.

VOTED: 4, 0, 1 (Milikowsky).

Conditions of Approval

The requirement in the Westhampton Zoning Bylaw, Section 5.14.5.A, requiring that any battery enclosure is located at least ten feet from any enclosure fence is waived; the battery enclosure shall be placed at least five feet from any enclosure fence.

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These proceedings were conducted in accordance with the provisions of the General Laws, and the Westhampton Zoning Bylaw. A full copy of the application, plans and proceedings is on file for inspection. Persons aggrieved by this decision may appeal in accordance with the provisions of MGL Ch. 40A §17 by filing notice of such appeal with the Westhampton Town Clerk within 20 days of the filing of this decision with the Town Clerk.

For the Westhampton Planning Board



Susan Bronstein, for the
Westhampton Planning Board

Date: _____

I hereby certify that no appeal has been filed in the twenty-day period following the date of filing this decision.

Attest: _____

Town Clerk